

general estate or the legatees (*b*), &c. But the Court will not give an opinion under the Act upon matters of detail which cannot be properly dealt with without the superintendence of the Court and the assistance of affidavits, such as the laying out a particular sum on *improvements* (*c*); nor will the Court adjudicate upon *doubtful points*, the decision of which would materially affect the rights of the parties interested (*d*).

[24. **Order 55.**— We should also call attention to the Rules of the Supreme Court, 1883, Order 55, Rule 3, under which an originating summons may be taken out in the Chambers of a Judge of the Chancery Division for directing executors, administrators, or trustees, to do or abstain from doing any particular act in their character as such executors, or administrators, or trustees; but this Rule applies only to matters within the trust, and the Court refused to make an order under it, directing trustees to concur in a sale of property in a partition action (*e*). Under this Order directions have been given for an advance by the trustees to the tenant for life for the purpose of stocking and taking a farm subject to the trust, for which a tenant could not be found (*f*). By Rule 12, the issue of the summons is not to interfere with or control any power or discretion vested in any executor, administrator, or trustee, except so far as such interference or control may necessarily be involved in the particular relief sought; and an order made upon such a summons will not interfere with the powers or discretions, except so far as they necessarily clash with the directions of the order (*g*).

25. **Questions under Settled Land Act.**— If any question arises, or doubt is entertained, respecting any matter within sect. 56 of the Settled Land Act, 1882, being the section which saves powers of the tenant for life, or trustees under a settlement, which are concurrent with those under the

(*b*) *Re Box*, 1 H. & M. 522.

[(*e*) *Suffolk v. Lawrence*, 32 W.

(*c*) *Re Barrington's Settlement*, 1 J. & H. 142.

R. 899.]

[(*f*) *Re Household*, 27 Ch. D.

(*d*) *Re Lorenz's Settlement*, 1 Dr. 554.]

& Sm. 401; *Re Hooper's Will*, 20

[(*g*) *Re Hall*, 51 L. T. N. S. 901;

Beav. 656; *Re Evans*, 30 Beav. 232;

54 L. J. N. S. Ch. 527.]

Re Bunnett, 10 Jur. N. S. 1098.